

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
LINDA DUGUE,

Plaintiffs,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER YADIMAR

PENA, #16957, POLICE OFFICER OSVALDO GARCIA,
POLICE OFFICER GRANT PULGARIN, POLICE
OFFICER JOHN DOE 1, POLICE OFFICER JOHN DOE
2, POLICE OFFICER JOHN DOE 3 and POLICE
OFFICER JOHN DOE 4,

Defendants.
-----X

Index No.:

Date Filed:

Plaintiff designates New
York County as the
Place For trial.

The basis of venue is
Place of Occurrence

SUMMONS

Plaintiff resides at
518 West 159th Street
New York, NY 10032

YOU ARE HEREBY SUMMONED, to answer the complaint in
this action and to serve copy of your answer, or, if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff(s) Attorney within 20 days after
the service of this summons, exclusive of the day of service (or within 30 days after the service
is completed if this summons is not personally delivered to you within the State of New York);
and in case of your failure to appear or answer, judgment will be taken against you by default
for the relief demanded in the complaint.

DATED: New York, New York
October 31, 2023

Defendant(s)' Address:

NYC POLICE DEPARTMENT:

1 Police Plaza
NY, NY 10038

THE CITY OF NEW YORK:

100 Church Street, New York, New York 10007

P.O. YADIMAR PENA #16957

c/o NYPD
1 Police Plaza
NY NY 10038

/s/ Devon M. Radlin, Esq.
DEVON M. RADLIN, ESQ.
Attorney for Plaintiff
305 Broadway-7th Floor
New York, New York 10007
Tel. No.: (212) 406 – 9200
Devon@LawDMR.com

P.O. OSVALDO GARCIA

c/o NYPD
1 Police Plaza
NY NY 10038

P.O. GRANT PULGARIN

c/o NYPD
1 Police Plaza
NY NY 10038

P.O. JD1

c/o NYPD
1 Police Plaza
NY NY 10038

P.O. JD2

c/o NYPD
1 Police Plaza
NY NY 10038

P.O. JD3

c/o NYPD
1 Police Plaza
NY NY 10038

P.O. JD4

c/o NYPD
1 Police Plaza
NY NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
LINDA DUGUE,

Index No. :

Plaintiff,

COMPLAINT

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER YADIMAR
PENA, #16957, POLICE OFFICER OSVALDO GARCIA,
POLICE OFFICER GRANT PULGARIN, POLICE OFFICER
JOHN DOE 1, POLICE OFFICER JOHN DOE 2, POLICE
OFFICER JOHN DOE 3 and POLICE OFFICER JOHN
DOE 4,

Respondents.

-----X
Plaintiff by their attorney, **DEVON M. RADLIN**, complaining of the defendants, respectfully
allege, upon information and belief, as follows:

PARTIES

1. Plaintiff, **LINDA DUGUE (DUGUE)**, was and still is a resident of the County, City and State of New York.
2. At all the times herein mentioned, defendant **CITY OF NEW YORK (CITY)** was and still is a domestic municipal corporation duly organized and existing under and by virtue of the laws of the City and State of New York.
3. At all the times herein mentioned, defendant **NEW YORK CITY POLICE DEPARTMENT (NYPD)**, was and still is a municipal agency duly organized and existing under and by virtue of the laws of the City and State of New York.
4. Defendant **POLICE OFFICER YADIMAR PENNA, #16957 (P.O. PENNA)** is a police officer and is employed by the defendants **CITY** and **NYPD**, jointly and severally.

5. Defendant ***POLICE OFFICER OSVALDO GARCIA (P.O. GARCIA)*** is a police officer and is employed by the defendants ***CITY*** and ***NYPD***, jointly and severally.
6. Defendant ***POLICE OFFICER GRANT PULGARIN (P.O. PULGARIN)*** is a police officer and is employed by the defendants ***CITY*** and ***NYPD***, jointly and severally.
7. Defendant ***POLICE OFFICER JOHN DOE 1 (P.O. JD1)*** is a police officer and is employed by the defendants ***CITY*** and ***NYPD***, jointly and severally.
8. Defendant ***POLICE OFFICER JOHN DOE 2 (P.O. JD2)*** is a police officer and is employed by the defendants ***CITY*** and ***NYPD***, jointly and severally.
9. Defendant ***POLICE OFFICER JOHN DOE 3 (P.O. JD3)*** is a police officer and is employed by the defendants ***CITY*** and ***NYPD***, jointly and severally.
10. Defendant ***POLICE OFFICER JOHN DOE 4 (P.O. JD4)*** is a police officer and is employed by the defendants ***CITY*** and ***NYPD***, jointly and severally.
11. At all times herein mentioned, the defendants, ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, were employed by the defendants ***CITY*** and ***NYPD***, jointly and severally, in the capacity of police officers, and were acting in such capacity as the agents, officers, servants and employees of the defendants, ***CITY*** and ***NYPD***, jointly and severally. They are sued individually and in their official capacity.
12. At all the times herein mentioned, defendants, ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, were acting under color of state law and under their authority as police officers for the defendants, ***CITY*** and ***NYPD***, jointly and severally.

13. At all times herein mentioned, the defendants, *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, were assigned to the 33RD Precinct located in the County, City and State of New York by the defendants *CITY* and *NYPD*, jointly and severally.
14. At all the times herein mentioned, defendants, *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, participated in the assault, excessive force, arrest, and malicious prosecution of plaintiff on December 21, 2022.

CONDITION PRECEDENT

15. Plaintiff has duly and timely served a statutory Notice of Claim upon the defendants, *CITY* and *NYPD*.
16. Plaintiff has complied with all the conditions precedent to the institution of this action and have complied with all the provisions of the charter of the City of New York in relation thereto and in particular have duly presented their claims herein to the Comptroller and Corporation Counsel of the City of New York for adjustment, and that more than thirty (30) days have elapsed since the presentation of said notice of claim and that said claims remain unadjusted and the Comptroller of the City of New York has failed and refused to make any adjustment or payment of the same and the plaintiffs, prior to the commencement of these actions and within ninety (90) days after the injuries hereinafter described were received, duly served their notice of intention to sue upon the claims hereinafter set forth, and that fifteen (15) months have not elapsed since the accrual of this cause of actions against the defendants.

FACTS

17. On December 21, 2022, at or about 10:00 A.M., Plaintiff entered the defendant **NYPD's** 33rd Precinct located at 2207 Amsterdam Avenue in the City, County and State of New York ("Precinct") in attempt to file a complaint for charges against an individual for an unrelated incident.
18. Plaintiff entered the Precinct with her daughter, who is five (5) years old, and her friend Monday Rowland.
19. Plaintiff approached defendants **P.O. JD1** and **P.O. JD2** demanded and asked to file a report.
20. Defendants **P.O. JD1** and **P.O. JD2** responded to Plaintiff with hostility and directed her to speak to defendants **P.O. JD3** and **P.O. JD4**.
21. Plaintiff complied.
22. In response, defendants **P.O. JD3** and **P.O. JD4** yelled at Plaintiff to leave the precinct and, in sum and substance, to stop wasting their time.
23. Plaintiff advised defendants **P.O. JD1**, **P.O. JD2**, **P.O. JD3** and **P.O. JD4** that she was in fear of her and her daughter's safety and needed their assistance to file a complaint.
24. Defendants **P.O. JD1**, **P.O. JD2**, **P.O. JD3** and **P.O. JD4**, laughed at Plaintiff and told her to leave the precinct.
25. Plaintiff requested to speak to a Sergeant.
26. In response, Defendants **P.O. PENA**, **P.O. GARCIA**, **P.O. PULGARIN**, **P.O. JD1**, **P.O. JD2**, **P.O. JD3** and **P.O. JD4**, jointly and severally, assaulted Plaintiff by grabbing her person, tackling, and throwing her onto the floor.

27. Defendants *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, jointly and severally, hyperextended Plaintiff's arms over her head and punched and kicked her person while she was on the floor.
28. During the assault on plaintiff, defendants *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, jointly and severally, said racist and sexual statements to Plaintiff, including but not limited to, "Ignorant black bitch!", "Fucking black bitch!", and "You want to play with us?"
29. Defendants *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, jointly and severally, dragged Plaintiff across the floor of the precinct and smashed her body into surrounding desks in the lobby.
30. Plaintiff's friend Monday Rowland and infant daughter attempted to intervene and defendants *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, jointly and severally, pushed them back and shouted, "You'll be next if you don't back up!"
31. Plaintiff was then handcuffed too tightly by one of the defendants and taken to a holding room inside the precinct.
32. Defendants *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, jointly and severally, began to remove Plaintiff's clothing and search her person and clothes.
33. Plaintiff demanded that defendants *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, jointly and severally, who were all men, to stop and that a female officer continue the search.

34. Defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, ignored Plaintiff and continued to search her person.
35. Defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, removed all of Plaintiff's property, including but not limited to, her jewelry and cash in the amount of approximately ten thousand (\$10,000) dollars.
36. Plaintiff requested a receipt for her property.
37. Defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, told plaintiff, in sum and substance, "If you don't shut the fuck up, we are going to call ACS, have your child removed from your home, and have you committed to a mental facility."
38. Defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, shackled Plaintiffs hands and feet and dragged her into a holding cell covered in fecal matter.
39. Plaintiff continually asked any defendant ***NYPD*** staff to loosen her handcuffs due to them being too tight and cutting off circulation to her hands.
40. Defendants ignored plaintiff.
41. At some point, an EMS worker John Doe 5 approached Plaintiff and advised defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, that Plaintiff needed emergent medical treatment.
42. Plaintiff was then escorted to Presbyterian Hospital by defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally.

43. The plaintiff continually asked for her handcuffs to be loosened and was ignored.
44. At Presbyterian Hospital, defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, advised medical staff that Plaintiff was, “refusing medical treatment,” over Plaintiff’s requests to see a doctor.
45. John Doe 5, MD approached and examined Plaintiff briefly and advised defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, to loosen her cuffs due to the lack of circulation from the cuffs.
46. Defendant ***P.O. JD4*** removed one (1) of plaintiff’s handcuffs.
47. Plaintiff did not receive any other medical treatment.
48. On December 22, 2022, at or about 1:00 A.M., Plaintiff was returned to the Precinct.
49. Plaintiff asked to call an attorney.
50. Plaintiff was ignored by defendants.
51. Plaintiff was escorted to the Criminal Court of the City of New York located at 100 Centre Street and was arraigned for Assault in the Third Degree (NYPL 120.00(1)); Assault in the Third Degree (NYPL 120.00(2); and Resisting Arrest (NYPL 205.30).
52. During Plaintiff’s arraignment, she learned that defendant ***P.O. GARCIA*** accused her of assaulting him by throwing coffee at him.
53. Plaintiff was released on her own recognizance.
54. On December 23, 2022, Plaintiff returned to the Precinct to collect her property.
55. Upon her arrival, defendants ***P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, began shouting derogatory and racist statements at Plaintiff, including but not limited to, “We fucked that bitch up,” “Shut

the fuck up!”, “We do what we want,” “We should lock her up again” and made threats to call ACS to have her child removed from her care.

56. Defendants refused to return Plaintiff’s property.
57. On February 6, 2023, Plaintiff’s criminal case was dismissed.
58. Defendants ***CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, while acting in active concert, knew that they did not have just or probable cause to arrest plaintiff.
59. Defendants, ***CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, intentionally detained and imprisoned the plaintiff without cause.
60. Defendants, ***CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, intentionally continued and participated in the criminal prosecution of plaintiff when they were aware that plaintiff had not committed any crime.
61. Defendants, ***CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, while acting in active concert, committed the following acts:
 - a) Without a legal or just reason or probable cause arrested and imprisoned plaintiff.
 - b) Covered-up their actions.
 - c) Falsely swore to a Criminal Court complaint and/or a Supporting Deposition charging the plaintiff with Assault in the Third Degree and other related charges when the defendants knew that plaintiff had not committed such crimes.
 - d) Arrested plaintiff knowing that they had no legal authority to do so.

- e) Arrested plaintiff with knowledge that their actions violated both New York State and United States constitutional civil rights.
 - f) Arrested Plaintiff with knowledge that plaintiff had not committed any crimes and that their actions violated both New York State and United States constitutional civil rights.
 - g) Initiated and continued criminal proceedings against plaintiff when there was no probable cause.
 - h) Had actual malice against plaintiff demonstrated by the failure to dismiss the criminal charges against her when provided with exculpatory evidence.
 - i) Falsely arrested and imprisoned plaintiffs knowing that they did not have probable cause to arrest and/or detain plaintiff.
 - j) Threatened to have ACS remove Plaintiff's child from her.
 - k) In using excessive force against Plaintiff in violation of the New York State and US Constitution.
 - l) In violating New York CPL § 150.20.
 - m) In violating Plaintiff's New York Civil Rights § 28.
 - n) In violating NYC Administrative Code §§ 8.801-8.807.
 - o) In violating NY CPL § 140.20(7).
62. The foregoing occurrence and resulting injuries were not due to any fault or want of care or negligence on the part of the plaintiffs, but was due wholly and solely to the carelessness, recklessness and negligence of the defendants, **CITY** and **NYPD**, jointly and severally, their safety, police officers, agents, servants, officers and employees, specifically, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**,

jointly: in that defendants' police officers knowingly and intentionally violated the plaintiff's rights as guaranteed to him by the constitutions of the United States and New York; in that defendants' police officers' actions and failures to act were an abuse of their authority; in that their actions and failures to act were to harass, humiliate and intimidate plaintiff without legal or just cause; in that defendants had actual and constructive knowledge of the lack of training in the supervision and monitoring of the public, specifically the plaintiff, for their police officers; in failing to train their police officers in proper and adequate security, supervision and monitoring policies and procedures; in failing to train their police officers in proper and adequate policies and procedures; in having actual and constructive knowledge of the lack of adequate training in their policies and procedures to protect the public, specifically *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, to ensure they were trained in the New York Penal Law Code and their obligations and restrictions under the same; in failing to train their police officers in proper and adequate supervision policies and procedures with the public, specifically plaintiff; in failing to properly train and supervise their police officers; in failing to provide plaintiffs with a safe environment; in failing to prevent the false arrest of plaintiff; in failing to stop or intervene in the false arrest and imprisonment of the plaintiff; in failing to follow security policies and procedures with the public, specifically plaintiff; in that defendants' had actual and constructive notice of the unfitness of their officers, specifically, defendants, *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*; in failing to abide by security policies and procedures with the public, specifically plaintiff; in failing to monitor and supervise the plaintiff; in failing to foresee and guard against the happening of the

occurrence; and in that the defendants were otherwise careless and negligent in the premises.

63. That solely by reason of the negligence and carelessness of the defendants, *CITY* and *NYPD*, jointly and severally, their police officers, agents, servants, officers and employees, specifically, *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, plaintiff sustained violations of her civil rights which are protected by the New York State and United States Constitutions; assault; nerve damage to wrists; false arrest; false imprisonment; detained; depression; malicious prosecution; fear; anxiety; extreme emotional distress; humiliation; stress; inability to sleep; that some of their psychological injuries may be permanent; may be required to seek medical attention in the future; and was prevented from attending to her daily social and economic activities.

FIRST CAUSE OF ACTION
(NEGLIGENCE)

64. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “63” herein, as if the same were set forth more fully and at length.
65. That the defendants, *CITY* and *NYPD*, jointly and severally, acting in active concert, their police officers, agents, servants, officers, and employees, specifically, *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*, jointly and severally, failed to supervise plaintiff, causing plaintiff to be illegally arrested and imprisoned, causing plaintiff to suffer serious and permanent injuries.
66. That the defendants, *CITY* and *NYPD*, jointly and severally, are liable for the actions of its employees, *P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3* and *P.O. JD4*.
67. That by reason of the foregoing, plaintiffs’ have suffered substantial damages.

68. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION
(STATE- NEGLIGENT HIRING)

69. Plaintiffs repeat and reallege each and every allegation set forth in paragraphs “1” through “63” and “65” through “68” of this complaint, with the same force and effect as if set forth herein at length.
70. That the defendants, **CITY** and **NYPD**, jointly and severally, their police officers, agents, servants, officers, and employees were negligent in their hiring and supervising of defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**.
71. That the defendants, **CITY** and **NYPD**, jointly and severally, acting in active concert, their police officers, agents, servants, officers, and employees, specifically, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, failed to train their police officers, causing plaintiff to be illegally arrested and imprisoned and subjected plaintiff to excessive force and assault which caused plaintiff to suffer serious and permanent injuries.
72. That the defendants, **CITY** and **NYPD**, jointly and severally, are liable for the actions of its employees, defendants **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**.
73. That the damages herein exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.
74. That by reason of the foregoing, plaintiffs have suffered substantial damages.

THIRD CAUSE OF ACTION
(FEDERAL- FALSE ARREST AND IMPRISONMENT)

75. Plaintiff repeats and realleges every allegation contained in paragraphs numbered “1” through “63” herein, as if the same were set forth herein more fully and at length.
76. The defendants, ***CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally, acting in concert and under color of state law, and each aiding and abetting one another with knowledge of the systematic violation of the plaintiffs’ Constitutional and Civil Rights as previously alleged, did actively conspire to prevent plaintiff from obtaining redress from such violations and did further agree to undertake any actions necessary to hide, cover up, and falsely justify their actions and in furtherance of, they did commit the following acts:
- a) Without a legal or just reason or probable cause arrested and imprisoned plaintiffs.
 - b) Covered-up their actions.
 - c) Falsely swore to a Criminal Court complaint and/or a Supporting Deposition charging the plaintiff with Assault in the Second Degree and other related charges when the defendants knew that plaintiff had not committed such crimes.
 - d) Arrested plaintiff knowing that they had no legal authority to do so.
 - e) Arrested plaintiff with knowledge that their actions violated both New York State and United States constitutional civil rights.
 - f) Arrested Plaintiff with knowledge that plaintiff had not committed any crimes and that their actions violated both New York State and United States constitutional civil rights.
 - g) Initiated and continued criminal proceedings against plaintiff when there was no probable cause.

- h) Had actual malice against plaintiff demonstrated by the failure to dismiss the criminal charges against him when provided with exculpatory evidence.
 - i) Falsely arrested and imprisoned plaintiff knowing that they did not have probable cause to arrest and/or detain plaintiff.
 - j) Threatened to have ACS remove Plaintiff's child from her.
 - k) In using excessive force against Plaintiff in violation of the New York State and US Constitution.
 - l) In violating New York CPL § 150.20.
 - m) In violating Plaintiff's New York Civil Rights § 28.
 - n) In violating NYC Administrative Code §§ 8.801-8.807.
 - o) In violating NY CPL § 140.20(7).
77. That by engaging in the foregoing acts, the defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, all committed under color of state law and under their authority as police officers of the defendants, **CITY** and **NYPD**, jointly and severally, and while acting in the scope of their employment and pursuant to authority vested in them by the defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, the defendants, jointly and severally, entered into and carried out a plan and scheme designed and intended to deny and deprive plaintiff of his rights, privileges and immunities as guaranteed to him by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, and in fact did so deny and deprive plaintiffs of her rights, privileges, and immunities.
78. That by reason of the foregoing, the plaintiff has suffered substantial damages.

79. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION
(STATE- FALSE ARREST AND IMPRISONMENT)

80. Plaintiffs repeat and reallege each and every allegation contained in paragraphs numbered “1” through “63” herein, as if the same were set forth herein more fully and at length.

81. The defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JDI, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, acting in concert and under color of state law, and each aiding and abetting one another with knowledge of the systematic violation of the plaintiffs’ New York State Constitutional Rights as previously alleged, did actively conspire to prevent plaintiff from obtaining redress from such violations and did further agree to undertake any actions necessary to hide, cover up, and falsely justify their actions and in furtherance of, they did commit the following acts:

- a) Without a legal or just reason or probable cause arrested and imprisoned plaintiffs.
- b) Covered-up their actions.
- c) Falsely swore to a Criminal Court complaint and/or a Supporting Deposition charging the plaintiff with Assault in the Third Degree and other related charges when the defendants knew that plaintiff had not committed such crimes.
- d) Arrested plaintiff knowing that they had no legal authority to do so.
- e) Arrested plaintiff with knowledge that their actions violated both New York State and United States constitutional civil rights.
- f) Arrested Plaintiff with knowledge that plaintiff had not committed any crimes and that their actions violated both New York State and United States constitutional civil rights.

- g) Initiated and continued criminal proceedings against plaintiff when there was no probable cause.
 - h) Had actual malice against plaintiff demonstrated by the failure to dismiss the criminal charges against him when provided with exculpatory evidence.
 - i) Falsely arrested and imprisoned plaintiff knowing that they did not have probable cause to arrest and/or detain plaintiff.
 - j) Threatened to have ACS remove Plaintiff's child from her.
 - k) In using excessive force against Plaintiff in violation of the New York State and US Constitution.
 - l) In violating New York CPL § 150.20.
 - m) In violating Plaintiff's New York Civil Rights § 28.
 - n) In violating NYC Administrative Code §§ 8.801-8.807.
 - o) In violating NY CPL § 140.20(7).
82. That by engaging in the foregoing acts, the defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, all committed under color of state law and under their authority as police officers of the defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, and while acting in the scope of their employment and pursuant to authority vested in them by the defendants, **CITY** and **NYPD.**, jointly and severally, the defendants, jointly and severally, entered into and carried out a plan and scheme designed and intended to deny and deprive plaintiff of her rights, privileges and immunities as guaranteed to her by the New York State Constitutional, and in fact did so deny and deprive plaintiff of her rights, privileges and immunities.

83. That by reason of the foregoing, the plaintiff has suffered substantial damages.
84. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION AS TO EACH PLAINTIFF
(FEDERAL- FAILURE TO TRAIN AND SUPERVISE)

85. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “63” herein, as if the same were set forth herein more fully and at length.
86. That defendants, **CITY** and **NYPD.**, jointly and severally, by their deliberate acts, gross negligence, and reckless conduct in failing to adequately train, discipline and supervise defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their agents, servants and employees, directly caused the harm suffered by plaintiff.
87. That the acts of the defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, committed under color of state law, deprived the plaintiff of her rights, privileges and immunities as guaranteed to her by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.
88. That by reason of the foregoing, the plaintiff has suffered substantial damages.
89. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION
(STATE- FAILURE TO TRAIN AND SUPERVISE)

90. Plaintiffs repeat and reallege each and every allegation contained in paragraphs numbered “1” through “63”, “65” through “68”, “70” through “74” and “81” through “84” herein, as if the same were set forth herein more fully and at length.
91. That defendants, **CITY** and **NYPD**, jointly and severally, by their deliberate acts, gross negligence, and reckless conduct in failing to adequately train, discipline and supervise defendants, **P.O. PENA**, **P.O. GARCIA**, **P.O. PULGARIN**, **P.O. JD1**, **P.O. JD2**, **P.O. JD3** and **P.O. JD4**, and in their failure to promulgate and put into effect appropriate rules and regulations applicable to the duties, conduct, activities and behavior of their agents, servants and employees, directly caused the harm suffered by plaintiff.
92. That the acts of the defendants, **P.O. PENA**, **P.O. GARCIA**, **P.O. PULGARIN**, **P.O. JD1**, **P.O. JD2**, **P.O. JD3** and **P.O. JD4**, jointly and severally, committed under color of state law, deprived the plaintiff of her rights, privileges and immunities as guaranteed to her by the New York State Constitution.
93. That by reason of the foregoing, the plaintiff has suffered substantial damages.
94. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION
FAILURE TO INTERFERE – §1983

95. Plaintiff repeats and realleges each and every allegation set forth in paragraphs numbered “1” through “63” herein, as if the same were set forth herein more fully and at length.
96. Defendants, **CITY**, **NYPD**, **P.O. PENA**, **P.O. GARCIA**, **P.O. PULGARIN**, **P.O. JD1**, **P.O. JD2**, **P.O. JD3** and **P.O. JD4**, jointly and severally, observed and/or had reason to know that plaintiffs’ constitutional rights were being violated.

97. Defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, had a realistic opportunity to intervene to prevent harm from occurring, specifically the false arrest and imprisonment of plaintiff.
98. Defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, violated their duty to intervene and to protect the constitutional rights of citizens, specifically plaintiff, from infringement by other law enforcement officers in their presence.
99. The above actions committed by defendants, jointly and severally, were a violation of plaintiffs' civil rights.
100. That by reason of the foregoing, the plaintiff has suffered substantial damages.
101. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION
(STATE – ASSAULT AND BATTERY)

102. Plaintiff repeats and realleges each and every allegation contained in paragraphs numbered “1” through “64” inclusive, as if the same were set forth herein more fully and at length.
103. Defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, assaulted, and battered plaintiffs without just cause.
104. Plaintiff was cuffed at her hands and feet and was not an immediate threat to anyone.
105. That defendants, **CITY** and **NYPD**, jointly and severally, are responsible for the actions of defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, due to *respondeat superior*.

106. That the damages herein exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

107. That by reason of the foregoing, plaintiff has suffered substantial damages.

NINTH CAUSE OF ACTION
(Federal - Malicious Prosecution)

108. Plaintiff repeats and reallages each and every allegation contained in paragraphs of the complaint numbered “1” through “63” herein with the same force and effect as if set forth herein at length.

109. The defendants, **CITY** and **NYPD**, their police officers, agents, servants, officers, employees, specifically defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, commenced and continued a criminal proceeding against plaintiff when they knew she was innocent of said criminal charges.

110. From December 21, 2022, through February 6, 2023, the defendants, jointly and severally, have been on notice that plaintiff was falsely arrested.

111. There was no probable cause for the initiation of the criminal proceeding against either plaintiff.

112. Defendants **CITY** and **NYPD**, their police officers, agents, servants, officers, employees, specifically defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, had actual malice against plaintiff which is demonstrated by the false arrest and continued criminal action against plaintiff upon receipt of exculpatory evidence.

113. The above constitutional violations caused immediate injury in the form of physical and emotional pain, suffering, shock, false arrest, false imprisonment, fright, humiliation,

embarrassment, and deprivation of the plaintiffs' constitutional rights as protected by the United States Constitution.

- 114. That as a result of the foregoing, plaintiff has suffered substantial damages.
- 115. That the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION
(State- Malicious Prosecution)

- 116. Plaintiff repeats and realleges each and every allegation contained in paragraphs of the complaint numbered "1" through "63" herein with the same force and effect as if set forth herein at length.
- 117. The defendants, **CITY** and **NYPD**, their police officers, agents, servants, officers, employees, specifically defendants **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, commenced and continued a criminal proceeding against plaintiff when they knew she was innocent of said criminal charges.
- 118. From December 21, 2022, through February 6, 2023, the defendants, jointly and severally, have been on notice that plaintiff was falsely arrested.
- 119. There was no probable cause for the initiation of the criminal proceeding against either plaintiff.
- 120. Defendants **CITY** and **NYPD**, their police officers, agents, servants, officers, employees, specifically defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, had actual malice against plaintiff which is demonstrated by the false arrest and continued criminal action against plaintiff.

121. The above constitutional violations caused immediate injury in the form of physical and emotional pain, suffering, shock, false arrest, false imprisonment, fright, humiliation, embarrassment, and deprivation of the plaintiffs' constitutional rights as protected by the New York State Constitution.
122. That as a result of the foregoing, plaintiffs have suffered substantial damages.
123. That the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION
(FEDERAL- RIGHT TO DUE PROCESS)

124. Plaintiff repeats and realleges each and every allegation contained in paragraphs of the complaint numbered "1" through "64" herein with the same force and effect as if set forth herein at length.
125. The above actions of the Defendants, jointly and severally, particular the defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, violated the plaintiffs' right to due process when they falsely commenced criminal proceedings against plaintiff when they knew that the plaintiff had not committed any crimes.
126. Defendants, jointly and severally, particular the defendants, **CITY** and **NYPD**, specifically defendants **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, committed the following in furtherance of violation of plaintiffs' right to due process: (1) covered up their actions; (2) falsely swore to a criminal complaint and supporting deposition against plaintiff; (3) threatened to utilize ACS and lie about Plaintiff's parenting to have her child removed from her; and (4) attempted to prevent plaintiff from redress for the violations.

127. The above constitutional violations are all actionable under and pursuant to the New York State Constitution and 42 U.S.C. §§ 1981, 1983, 1985 and 1986.
128. The above actions of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, were intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to plaintiffs' rights and physical well-being.
129. The above constitutional violation caused immediate injury in the form of physical and emotional pain, suffering, shock, false arrest, illegal imprisonment, attorney's fees, fright, humiliation, embarrassment, and deprivation of plaintiffs' constitutional rights.
130. That by reason of the foregoing, plaintiff has suffered substantial damages.
131. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
CONSPIRACY – §1985(3)

132. Plaintiff repeats and realleges each and every allegation contained in paragraphs of the complaint numbered "1" through "64" herein with the same force and effect as if set forth herein at length.
133. The above actions of the Defendants, jointly and severally, particular the defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, conspired against plaintiffs' and violated the plaintiffs' right to equal protection of the laws, privileges and immunities under the laws when they falsely arrested and imprisoned plaintiffs and in furtherance of the deprivation of rights, defendants' falsely commenced criminal proceedings against each plaintiff when they knew that the plaintiff had not committed any crimes.

134. Defendants, jointly and severally, particular the defendants, **CITY** and **NYPD**, specifically defendants **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, committed the following acts in furtherance of the object of their conspiracy: (1) arrested plaintiff without probable cause; (2) assaulted plaintiffs; (3) falsely sworn to a criminal complaint affidavit against plaintiff; (4) falsely imprisoned plaintiff; (5) covered-up their actions against plaintiff; and (6) attempted to prevent plaintiff from redress for the violations.
135. That as a direct and proximate result of the knowing, intentional and malicious acts of the defendants, their employees, agents, officers and police officers, jointly and severally, as described aforesaid, all committed under color of state law and under their authority as law enforcement officers employed by the defendants, **CITY** and **NYPD**, jointly and severally, and while acting in the scope of their employment, and pursuant to authority vested in each of them by defendants, **CITY** and **NYPD**, jointly and severally, (Badge of Authority), the defendants' caused the plaintiff to be falsely arrested, assaulted, falsely imprisoned, abused, intimidated, degraded and humiliated without cause.
136. That by engaging in the foregoing acts, practices and courses of conduct, the defendants, their employees, agents, peace, safety and police officers, jointly and severally, specifically defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, used their positions in law enforcement for improper purposes, subjecting plaintiffs to deprivation of their rights, privileges and immunities as guaranteed to her by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution and in that plaintiff was denied her protected rights to be free

- from false arrests, assaults, false imprisonment, abuse, intimidation, degradation and humiliation without cause.
137. The actions of defendants, **CITY** and **NYPD**, jointly and severally, their police officers, employees, agents, specifically defendants **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, against plaintiffs have deprived plaintiff of having and exercising their rights and privileges as a United States citizen secured by the United States Constitution, specifically 42 U.S.C. §1985(3).
138. Defendants, **CITY** and **NYPD**, jointly and severally, knew or should have known that the failure to adequately address the violent propensities and inadequate training of its police officers, specifically defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, had caused problems in the past, and would continue to cause problems in the future, including violations of constitutional rights because of the failure to adopt and implement adequate policies, procedures and practices and to adequately screen, train, supervise and/or discipline their police officers engaging in, or likely to engage in, such behavior.
139. Defendants, **CITY** and **NYPD.**, jointly and severally, despite actual knowledge of this unconstitutional pattern and practice by its rank and file, leadership at the defendant **NYPD** failed to implement any additional training or education of its officers to lessen the constitutional violations committed by their police officers, specifically, defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally.
140. The defendants' **NYPD**, policy, practice and custom of the usage of this illegal and unconstitutional failure to train and/or educate its police officers in the proper procedures

of entering private dwellings, arrests, and use of force during said arrests directly and proximately caused harm to Plaintiff.

141. The above acts constituting a conspiracy against plaintiffs by defendants, **CITY** and **NYPD**, jointly and severally, their agents, servants, and officers, specifically defendants **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, directly and proximately caused the deprivation of Plaintiffs' constitutional rights secured by the Fourth (4th) and Fourteenth (14th) Amendments to the United States Constitution and were in violation of 42 U.S.C. § 1985(3).
142. As a result of the foregoing, Plaintiff was caused to suffer severe and permanent physical, psychological, and emotional injuries, violations of his civil rights, emotional distress, depression, fear, anxiety, anguish, humiliation, medical treatment, loss of freedom and damage to their reputation within their community.
143. That by reason of the foregoing, plaintiff has suffered substantial damages.
144. That the amount of damages sought exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

THIRTEENTH CAUSE OF ACTION
EXCESSIVE FORCE – §1983

145. Plaintiff repeats and realleges each and every allegation contained in paragraphs of the complaint numbered “1” through “64” of this complaint, with the same force and effect as if set forth herein at length.
146. The above actions of the Defendants, jointly and severally, particular the defendants, **CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, conspired against plaintiff and violated his right to equal protection of the laws, privileges and immunities under the laws when they allowed

plaintiff to be assaulted and subjected to excessive force, and in furtherance of the deprivation of rights, defendants' falsely completed defendant **NYPD** reports as to the truth as to the assault against Plaintiff.

147. That as a direct and proximate result of the knowing, intentional and malicious acts of the defendants, their employees, agents and police officers, jointly and severally, as described aforesaid, all committed under color of state law and under their authority as law enforcement officers employed by the defendants, **CITY** and **NYPD**, jointly and severally, and while acting in the scope of their employment, and pursuant to authority vested in each of them by defendants, **CITY** and **NYPD**, jointly and severally, (Badge of Authority), the defendants' caused the plaintiff to be assaulted, abused, intimidated, degraded and humiliated without cause.
148. That by engaging in the foregoing acts, practices and courses of conduct, the defendants, their employees, agents, officers and police officers, jointly and severally, specifically defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, used their positions in law enforcement for improper purposes, subjecting plaintiff to deprivation of her rights, privileges and immunities as guaranteed to her by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution and in that plaintiff was denied her protected rights to be free from excessive force.
149. The actions of defendants, **CITY** and **NYPD**, jointly and severally, their police officers, employees, agents, specifically defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, against

- plaintiff has deprived plaintiff of having and exercising her rights and privileges as a United States citizen secured by the United States Constitution, specifically 42 U.S.C. §1985(3).
150. Defendants, **CITY** and **NYPD**, jointly and severally, knew or should have known that the failure to adequately address the violent propensities and inadequate training of its police officers, specifically defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally, had caused problems in the past, and would continue to cause problems in the future, including violations of constitutional rights because of the failure to adopt and implement adequate policies, procedures and practices and to adequately screen, train, supervise and/or discipline their police officers engaging in, or likely to engage in, such behavior.
151. Defendants, **CITY** and **NYPD**, jointly and severally, despite actual knowledge of this unconstitutional pattern and practice by its rank and file, leadership at the defendant **NYPD** failed to implement any additional training or education of its officers to lessen the constitutional violations committed by their police officers, specifically, defendants, **P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3** and **P.O. JD4**, jointly and severally.
152. The defendants' **CITY** and **NYPD**, jointly and severally, policy, practice and custom of the usage of this illegal and unconstitutional failure to train and/or educate its police officers in the proper procedures of using excessive force directly and proximately caused harm to Plaintiff.
153. As a result of the foregoing, Plaintiff was caused to suffer severe and permanent physical, psychological, and emotional injuries, violations of her civil rights, emotional distress,

depression, fear, anxiety, anguish, humiliation, medical treatment, loss of freedom and damage to her reputation within her community.

WHEREFORE, plaintiffs' demands judgment against the defendants, ***CITY, NYPD, P.O. PENA, P.O. GARCIA, P.O. PULGARIN, P.O. JD1, P.O. JD2, P.O. JD3*** and ***P.O. JD4***, jointly and severally:

- A. Award compensatory damages to plaintiff in an amount determined by the jury for each cause of action;
- B. Award the costs and expenses of this action to plaintiff;
- C. Award reasonable attorneys' fees to the Plaintiffs under 42 U.S.C § 1988 and/or any other applicable laws.
- D. Award punitive damages in an amount determined by the jury;
- E. Award such other and further relief as this Court may deem appropriate.

Dated: New York, New York
October 31, 2023

/s/ Devon M. Radlin
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